

Equivalent Citations

citation codes .

KISHAN YADAV v. STATE OF CHHATTISGARH

Chhattisgarh High Court (Oct 13, 2023)

CASE NO.

MCRC/7279/2023

DISPOSITION

DISMISSED

ATTORNEY

NAFR**HIGH COURT OF CHHATTISGARH, BILASPUR****MCRC No. 7279 of 2023**

Kishan Yadav S/ o Late Mahavir Yadav Aged About 26 Years R/ o Village Chorhadeori, P.S. Ratanpur District Bilaspur (Chhattisgarh). Present R/ o Sanjay Nagar Chaatidiah, P.S. Sarkanda, District Bilaspur (C.G.) --- **Applicant.**

Versus

State Of Chhattisgarh through Police Station Sarkanda, District Bilaspur (Chhattisgarh) --- **Respondent.**

CAUSE TITLE TAKEN FROM CIS PERIPHERY

For Applicant : Mr. Palash Tiwari, Adv.

For State : Mr. Arjit Tiwari, PL.

--

Hon'ble Shri Justice Deepak Kumar Tiwari
Order On Board**13.10.2023**

This second application under Section 439 Cr.P.C. for grant of bail has been filed by the accused/ applicant who has been arrested on 05.07.2022 in connection with Crime No.759/2022 registered at Police Station Sarkanda, Bilaspur for the offence under Sections 376 (D) & 506 of the IPC and Sections 4 & 6 of the POCSO Act.

2 Prosecution case in brief, is that, on 26.01.2022, mother and father of the prosecutrix had gone in the sad demise of their relative's house. Taking the advantage of said situation, the applicant and other co-accused Chhavi Yadav, who is close relative and son of maternal aunt of the prosecutrix, both committed *rape* with the minor girl. Thereafter, the prosecutrix conceived a child and disclosed the incident to their family members. Based on such allegations, the aforesaid offences

have been registered against the present applicant and co- accused Chhavi Yadav.

It is pertinent to mention here that earlier bail application was rejected by this Court vide order dated 14.06.2023 passed in MCRC No.3110/2023.

3. Learned counsel for the applicant submits that the applicant is innocent and falsely implicated in the crime in question. He further submits that in order to protect the main accused who is close relative of the complainant, the present applicant has been roped in the false case. He also submits that FIR has been lodged very belatedly and DNA report does not match with applicant. He would also submit that mother of the prosecutrix has been examined and she has admitted the fact that there was some enmity between the applicant with her. He also submits that the applicant is languishing in jail since 05.07.2022 and conclusion of the trial is likely to take some more time. Therefore, the applicant may be released on bail.

4. On the other hand, learned State counsel strongly opposes the prayer for bail and submits that all the grounds raised in the instant case has already been put-forth during the hearing of earlier bail application which was rejected on merits. He also submits that the present case pertains to *group rape* and there is no material change in the circumstances. State counsel further submits that looking to the seriousness of allegation, appreciation of evidence at this stage is not required, therefore, bail application of the applicant is liable to be rejected.

5. Having considered the submission of learned counsel for the parties and after perusing the statement of the mother of the prosecutrix (PW-1) who categorically deposed that the present applicant has committed *rape* with the prosecutrix and also considering that present case pertains to the *group rape* , without further commenting on merits of the case, I am not inclined to release the applicant on bail.

6. Accordingly, this application is **rejected**. Sd/-

(Deepak Kumar Tiwari) Judge

Ajay.